



WEBSITE DESIGN & DEVELOPMENT AGREEMENT

Marketing Website for TestPortal Virtual Academy

Reference: TPVA-WEB-2026-01 | Date of Agreement: 30 July 2026

This Agreement is made on **30 July 2026** between the parties identified below, and sets out the terms upon which the Developer will design, build and deliver a marketing website for the Client.

By accepting these terms and remitting the deposit described in Clause 5, the parties agree to be bound by the whole of this Agreement.

THE DEVELOPER

Emmanuel Ikpomosa Esekhaigbe

Independent Web Developer

Federal Republic of Nigeria

Hereinafter referred to as "the Developer"

THE CLIENT

TestPortal Virtual Academy

Represented by **Mr. Olufemi**, Director

135 Great Horton Road, Bradford, BD7 1AL, United Kingdom

Hereinafter referred to as "the Client"

1. PURPOSE OF THIS AGREEMENT

The Client operates an online STEM tuition academy delivering lessons from Year 7 through GCSE and A-Level. The Client requires a professional marketing website to present its subjects, teaching pathway, team and credentials to prospective parents and students, and to receive enquiries by email.

The Developer agrees to design, build, test and deliver that website in accordance with the scope set out in Clause 2, and the Client agrees to pay the fees set out in Clauses 4 and 5.

2. SCOPE OF WORK — INCLUDED

The Developer shall deliver a responsive, mobile-friendly marketing website comprising the following pages and features:

Pages

- **Home** — hero, key statistics, teaching pathway (Key Stage 3 → GCSE → A-Level), subject overview, curricula covered, reasons to choose the Academy, and calls to action.
- **About** — the Academy’s story and approach, together with a “Meet the Team” section displaying each team member’s photograph, name and role.
- **Courses** — Mathematics, Physics, Chemistry, Biology, Computer Science and English Language, each broken down by level and examination board.
- **Testimonials** — parent and student feedback supplied by the Client.
- **Contact** — enquiry form, contact details, location map and a frequently-asked-questions section.
- **Privacy Notice** and **Terms of Use**.

Features

- Working contact form that delivers enquiries directly to the Client’s designated email inbox.
- Responsive layout tested on mobile, tablet and desktop screen sizes.
- Click-to-chat WhatsApp contact button.
- Foundational search-engine optimisation: page titles, meta descriptions, sitemap, robots file and structured data.
- Placeholder logo and favicon, to be replaced free of charge once the Client supplies final artwork.
- Deployment to live hosting, together with purchase, registration and configuration of the domain name on the Client’s behalf — the cost of the domain itself being payable by the Client under Clause 11.
- Handover of all source files and written setup documentation.

3. SCOPE OF WORK — EXCLUDED

For the avoidance of doubt, the following are **not** included in the fee stated in Clause 4. Each may be quoted and undertaken as separate work by mutual agreement:

- Student or tutor login accounts, learning-management systems, or any student portal.
- Online payment processing, fee collection, or e-commerce functionality.
- Lesson scheduling, calendar booking systems, or timetable software.
- Blog, news section, or content-management system enabling the Client to edit pages directly.
- Original logo design, brand identity development, or graphic design beyond page layout.
- Professional copywriting, translation, or content beyond arrangement of material supplied by the Client.
- Photography, videography, or purchase of licensed stock imagery.
- Search-engine marketing, paid advertising, or social media management.
- Routine content updates after final delivery (see Clause 8).

4. CONTRACT SUM

The total fee for the work described in Clause 2 is **₦150,000.00 (One Hundred and Fifty Thousand Naira only)**.

This sum is fixed for the agreed scope. It is exclusive of the domain name cost described in Clause 11 and of any third-party service costs described in Clause 12, all of which remain the responsibility of the Client.

5. PAYMENT SCHEDULE

STAGE	DESCRIPTION	AMOUNT	DUE
1	Commencement deposit	₦100,000.00	Before any work commences. Work begins only on confirmed receipt.
2	Completion balance	₦50,000.00	On completion of the work, prior to final deployment and handover.
Total Contract Sum		₦150,000.00	One Hundred and Fifty Thousand Naira only

- 5.1** The deposit is payable in full before the Developer commences work. The Developer is under no obligation to begin until the deposit has been confirmed as received.
- 5.2** The balance falls due upon completion. The Developer will present the completed website for the Client's review; the balance is payable before the website is deployed to the Client's live domain and before source files are handed over.
- 5.3** All payments are to be made in Nigerian Naira by bank transfer to the account nominated by the Developer in writing.

6. DELIVERY TIMELINE

The Developer shall complete and present the website within **seven (7) calendar days**, commencing on the later of:

- (a)** the date on which the deposit under Clause 5 is confirmed as received; or
- (b)** the date on which the Client has supplied all materials listed in Clause 9.

IMPORTANT — EFFECT OF LATE MATERIALS

Where the Client supplies required materials late, or supplies them incomplete, the delivery deadline is extended day-for-day by the length of the delay. The Developer cannot be held to the seven-day term in respect of any page for which the Client has not provided the necessary content.

7. REVISIONS

- 7.1** The fee includes **one (1) round of revisions** following first presentation of the completed website. The Client shall consolidate all requested changes into a single written list.
- 7.2** Revisions cover refinement of the agreed scope — adjustments to wording, imagery, ordering, colour and layout. They do not extend to additional pages, new features, or a change of design direction, each of which constitutes new work to be quoted separately.
- 7.3** Where the Client does not respond with revision requests within seven (7) days of presentation, the website shall be deemed accepted.

8. POST-LAUNCH SUPPORT AND DEFECT CORRECTION

- 8.1** The Developer shall correct defects in the delivered website **at no charge, for the lifetime of the website**, upon written notice from the Client.
- 8.2** A “defect” means a fault in the functionality as delivered — including broken links, a contact form that fails to send, pages that do not load, or layout that renders incorrectly on supported devices.
- 8.3** This undertaking is conditional upon the website remaining materially as delivered by the Developer, hosted on the platform on which it was deployed, and not having been modified by the Client or any third party.
- 8.4** The following are expressly excluded from Clause 8.1 and are chargeable as separate work: new pages or features; changes to text, images, prices or team members; redesigns or restyling; recovery of a website altered or damaged by another party; and faults arising from outages, policy changes or discontinuation of third-party services relied upon by the website.

9. CLIENT RESPONSIBILITIES

To enable delivery within the agreed timeline, the Client shall supply the following promptly and in usable form:

- Final logo artwork, where available. Until supplied, a placeholder will be used.
 - Photographs of each team member, together with their full name and role.
 - Genuine testimonials from parents or students, with attribution.
 - Final wording for the About page and any subject descriptions the Client wishes to amend.
 - Confirmation of the correct domain name and access to domain and DNS settings.
 - The email address at which enquiries are to be received.
 - Timely responses to questions raised by the Developer during the build.
- 9.1** The Client warrants that it holds all necessary rights, licences and consents in respect of every logo, photograph, testimonial and text supplied, and that no such material infringes the rights of any third party.
- 9.2** The Client warrants that all factual and promotional claims to be published — including student numbers, pass rates, ratings and tutor qualifications — are accurate and substantiated. The Developer publishes such claims as supplied and accepts no responsibility for their accuracy.
- 9.3** Where photographs or testimonials relate to persons under the age of eighteen, the Client warrants that appropriate parental or guardian consent has been obtained for publication.

10. DATA PROTECTION

The Developer shall implement a privacy notice on the website describing the personal data collected through the enquiry form. As the party determining the purposes for which enquirer data is used, the Client remains the data controller and is solely responsible for its compliance with applicable data-protection law,

including the United Kingdom General Data Protection Regulation.

11. DOMAIN NAME

- 11.1** The Developer shall purchase and register the domain name on the Client's behalf and shall administer it for the Client's benefit. The Client is not required to register or configure it.
- 11.2** The agreed domain name is **testportalva.org**. **The cost of the domain is borne by the Client** — both the initial registration and every annual renewal thereafter — and is not included in the Contract Sum stated in Clause 4.
- 11.3** Domain prices vary considerably, and certain names carry a premium. Where the Developer considers the cost of the Client's preferred domain to be material, **the Developer may require payment of that cost in advance**, in addition to the deposit under Clause 5, before the registration is undertaken. The Developer is under no obligation to purchase a domain at his own expense.
- 11.4** Any delay arising from non-payment of a domain cost under Clause 11.3 extends the delivery period in Clause 6 day-for-day, and shall not count as a delay on the part of the Developer.
- 11.5** The Developer shall give the Client reasonable notice ahead of each annual renewal date. Where the Client does not remit the renewal cost by that date, the Developer is not obliged to renew the domain and shall bear no liability for its expiry, nor for any interruption to the website or to email services resulting from that expiry.
- 11.6** The domain is held for the Client's benefit and shall be transferred into a registrar account of the Client's own upon written request, provided that all sums due under this Agreement and all domain costs incurred to that date have been paid in full.

12. HOSTING AND THIRD-PARTY SERVICES

- 12.1** Website hosting and the email-delivery service used by the enquiry form shall be held in accounts owned and controlled by the Client.
- 12.2** All charges, subscriptions, renewals and upgrades relating to those services are payable by the Client and are not included in the Contract Sum.
- 12.3** The Developer will configure these services on the Client's behalf but shall not be liable for service interruptions, changes to third-party pricing or terms, or loss of access arising from the Client's management of its own accounts.
- 12.4** The website is delivered on the free service tiers available at the date of this Agreement. Where the Client's usage exceeds the limits of those tiers, any upgrade is at the Client's cost and discretion.

13. INTELLECTUAL PROPERTY

- 13.1** All rights in the website design, source code and files created under this Agreement remain vested in the Developer until the Contract Sum has been paid in full.

- 13.2** Upon receipt of final payment, full ownership of the delivered website design, source code and files passes to the Client absolutely.
- 13.3** All content supplied by the Client — including its name, logo, photographs, testimonials and text — remains the property of the Client at all times.
- 13.4** The Developer retains the right to display the completed website, and screenshots of it, in a professional portfolio and to refer to the Client as a client, unless the Client objects in writing.

14. CONFIDENTIALITY

Each party shall keep confidential all non-public information disclosed by the other in connection with this Agreement, and shall not disclose it to any third party without prior written consent, save where disclosure is required by law. This obligation survives termination of this Agreement.

15. CANCELLATION AND TERMINATION

- 15.1** The deposit under Clause 5 is non-refundable once work has commenced.
- 15.2** Should the Client terminate this Agreement before completion, the Developer shall hand over all work completed to that date, and no further sums shall fall due.
- 15.3** Should the Client fail to supply required materials or to respond to the Developer for a continuous period exceeding thirty (30) days, the Developer may treat the project as suspended. Resumption thereafter may attract a re-engagement fee to be agreed in writing.
- 15.4** Either party may terminate this Agreement on written notice where the other commits a material breach and fails to remedy it within fourteen (14) days of being notified.

16. LIMITATION OF LIABILITY

The Developer's total aggregate liability arising out of or in connection with this Agreement shall not exceed the total sums actually paid by the Client under it. Neither party shall be liable for indirect or consequential loss, including loss of profit, loss of enrolment, or loss of business opportunity. Nothing in this clause limits liability for fraud or for any matter which may not lawfully be limited.

17. ENTIRE AGREEMENT AND VARIATION

This document constitutes the entire agreement between the parties in respect of its subject matter and supersedes all prior discussions, proposals and understandings, whether oral or written. No variation shall be effective unless recorded in writing and agreed by both parties.

18. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria. The parties shall first seek to resolve any dispute arising under this Agreement by good-faith discussion between the Developer and the Director of the Client. Failing resolution within thirty (30) days,

the dispute shall be submitted to the exclusive jurisdiction of the courts of the Federal Republic of Nigeria.

Agreed Terms. The parties named below confirm that they have read and understood this Agreement and accept its terms in full. Remittance of the deposit described in Clause 5 shall constitute acceptance of this Agreement in its entirety.

Emmanuel Ikpomosa Esekhaigbe
Web Developer — for and on behalf of the Developer

Date

Mr. Olufemi
Director — for and on behalf of TestPortal Virtual Academy

Date